

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

Department 16, Honorable Roberta S. Hayashi, Presiding

Courtroom Clerk:

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LAW AND MOTION TENTATIVE RULINGS

To contest the ruling, call (408) 808-6856 before 4:00 P.M.

DATE: FRIDAY, APRIL 11, 2025

TIME: 9:00 A.M.

Please Read Carefully As Some of Our Protocols Have Changed.

All Courts of California celebrate the diversity of the attorneys and the litigants who appear in our Courts. Do not hesitate to correct the Court or Court Staff concerning the pronunciation of any name or how anyone prefers to be addressed, or referred to. All persons should spell their names for the benefit of Court Staff.

Appearances.

Personal appearances in the courtroom are strongly encouraged. If you must appear remotely, you must use the MS Teams link from a device with a camera. Please "name" yourself when you log in, as: **Line #/name/party**. Remote appearances should be made from a quiet location with no background noise (and not from a moving vehicle). IT IS ABSOLUTELY NECESSARY FOR ALL INDIVIDUALS TO SPEAK SLOWLY, AND NOT TO INTERRUPT WHEN SOMEONE ELSE IS SPEAKING.

Please notify this Court immediately if the matter will not be heard on the scheduled date. **California Rules of Court**, rule 3.1304(b). If a party fails to appear at a law and motion hearing without having given notice, this Court may take the matter off calendar, to be reset only upon motion, or may rule on the matter. **California Rules of Court**, rule 3.1304(d).

This Court expects all counsel and litigants to comply with the Tentative Rulings Procedures that are outlined in Local Civil Rule 7(E) and **California Rules of Court**, rule 3.1308. If the Court has not directed argument, oral argument must be permitted only if a party notifies all other parties and the court by 4:00 p.m. on the court day before the hearing of the party's intention to appear. A party must notify all other parties by telephone or in person. A failure to timely notify this Court and/or the opposing parties may result in the tentative ruling being the final order in the matter.

A party may give notice that he or she will not appear at a law and motion hearing and submit the matter without an appearance unless this Court orders otherwise. This Court will rule on the motion as if the party had appeared. **California Rules of Court**, rule 3.1304(c).

Court Reporters.

This Court does not appoint Court Reporters in civil actions except in limited circumstances. If you wish to arrange for a private court reporter, please use Local Form #CV-5100.

No electronic recordings, video, still photography or audio capture of this live stream is allowed without the expressed, written permission of the Superior Court of California, County of Santa Clara. Use of the Court's Electronic Recording (ER) system is limited to proceedings permitted by statute or General Order of the Court. State and Local Court rules prohibit photographing or recording of court proceedings whether in the courtroom or while listening on the Public Access Line or other virtual platform, without a Court Order. See Local General Rule 2(A) and 2(B); **California Rules of Court**, rule 1.150.

Orders After Hearing

The Court will prepare the Final Order unless stated otherwise below or at the hearing. Counsel are to comply with **California Rules of Court**, rule 3.1312.

TROUBLESHOOTING TENTATIVE RULINGS

If you see last week's tentative rulings, you have checked prior to the posting of the current week's tentative rulings. You will need to either "REFRESH" or "QUIT" your browser and reopen it. If you fail to do either of these, your browser may pull up old information from old cookies even after the tentative rulings have been posted.

Tentative Rulings Are Continued Below. Full Orders Are On The Following Pages.

LINE #	CASE #	CASE TITLE	RULING
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LINE #	CASE #	CASE TITLE	RULING
LINE 1	22CV400993	Linda Mitchell vs Safeway Inc. (Trial Date: 6/30/2025)	Defendant's Motion to Compel Plaintiff's Responses to Form Interrogatories, Specially Prepared Interrogatories and Demand for Production of Documents is GRANTED. See Tentative Ruling below for details. On its own motion, the Court sets matter for OSC re: Dismissal or imposition of sanctions if fully responsive, code compliant discovery responses ordered hereby are not timely served, which OSC is set for 5/30/2025 at 10 a.m. in D16. Unless otherwise stipulated to by the Parties, Plaintiff is ordered to appear on May 30, 2025. Moving Party to prepare Orders; Court will give notice of Order to Show Cause.
LINE 2	23CV414590	Kristin Tsai et al vs Alice Chang et al	Plaintiff's Motion to Relieve Plaintiff from Waiver of Objections is OFF-CALENDAR following the IDC.
LINE 3	23CV414590	Kristin Tsai et al vs Alice Chang et al	Defendants' Motion to Compel Plaintiff Kristin Tsai's Further Responses to Special Interrogatories is CONTINUED TO MAY 30, 2025 by stipulation and order at the IDC.
LINE 4	23CV414590	Kristin Tsai et al vs Alice Chang et al (Trial Date 6/23/2025)	Defendants' Motion to Compel Plaintiff Kristin Tsai's Further Responses to Special Interrogatories is CONTINUED TO MAY 30, 2025 by stipulation and order at the IDC.

LINE #	CASE #	CASE TITLE	RULING
LINE 5	19CV349624	Julia Magana et al vs FORD MOTOR COMPANY et al (Trial Date 6/23/2025)	Plaintiffs Motion to substitute Linda Conde (Executor, Successor in Interest for Plaintiffs Julia Magana (died 12/11/2022) and Tony Magana (died 10/4/2024)) as Plaintiff, is GRANTED. Order to be prepared by Moving Party. Counsel are ordered to appear for further orders regarding vacating the current trial date, setting a date for hearing Defendant’s Motion for Summary Judgment/Summary Adjudication and for Continued Trial. Prior to appearance, Counsel shall meet and confer regarding: 1) Stipulation or Agreement pursuant to CCP section 583.330 specifying the “last date” to commence trial in this matter pursuant to CCP section 583.310, 583.340 and 583.350, taking into consideration the applicable COVID emergency rules; 2) trial dates not earlier than January 5, 2026 when Parties, counsel and expert witnesses will be available for trial; 3) time estimate for trial (including motions in limine and jury selection); and 4) Alternative Dispute Resolution.
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22CV400993

Linda Mitchell v. Safeway, Inc.

Jury Trial: 6/30/2025

Plaintiff filed her complaint for monetary damages for negligence by Defendant based upon an alleged slip and fall in the Morgan Hill Safeway store on July 10, 2020. It does not appear that Plaintiff took any action to prosecute her case for over a year, until she filed her First Amended Complaint for negligence; premises liability, on December 30, 2022. Defendant Safeway, Inc. promptly filed its general denial and affirmative defenses on January 3, 2023.

Immediately after it appeared in the action, in January 16, 2023, Defendant Safeway served Form Interrogatories, Special Interrogatories and Request for Identification and Production of Documents. Inexplicably, Plaintiff did not respond to those discovery requests. On August 24, 2024, on the eve of the Trial Setting Conference, Defendant served its demand that Plaintiff Supplement her Discovery Responses (which essentially provided Plaintiff with the opportunity to respond to the discovery previously served on her over a year earlier). For over two years, despite correspondence, demands, the request for supplemental responses and even the filing of this motion, Plaintiff has failed to respond to the discovery requests. The Court notes that as Plaintiff did not respond at all, Defendant was not compelled to bring its motion to compel responses within any specific time. However, given this history, and Plaintiff's failure to respond to the demand for Supplemental Discovery responses – which should have been served by September 29, 2024, the Court would have expected this Motion to be filed several months ago.

On March 4, 2025, Defendant filed the current Motion to Compel Discovery Responses, which comes before the Court following grant of an order to advance the hearing date so that the matter could be heard prior to the approaching discovery and motions cut-offs. No opposition was filed thereto. As stated in CRC 8.54: "A failure to oppose a motion may be deemed a consent to the granting of the motion."

Accordingly, Defendants' Motion to Compel Discovery Responses is GRANTED. Any and all objections thereto are deemed waived. On or before May 1, 2025, Plaintiff shall provide verified, full and complete Responses to the Form Interrogatories, Special Interrogatories and Request for Production, and Produce any responsive documents.

In addition the Court finds that it was necessary for Defendant to file this motion following Plaintiff's failure to respond to discovery. Accordingly, the court finds that monetary sanctions pursuant to CCP §§ 2023.010(d) and 2023.030(a) are appropriate. However, it was Defendant's choice to wait until March 4, 2025 to file the motion, and thus the Court will not award sanctions for the additional time spent on the ex parte application to advance the hearing date. Accordingly the Court orders that Plaintiff pay as discovery sanctions to Defendant's counsel the amount of **\$1,310**. (5 hours attorney fees at \$250/hour + \$60 filing fee), which amount shall be paid in not more than 30 days from notice of entry of this Order.

If Plaintiff fails to comply with the order of this Court, the court may order terminating, evidentiary or monetary sanctions, or all of the above for her abuse pursuant to CCP §§2023.010(g) and 2023.030. Accordingly, on its own motion, **the Court hereby orders that on May 30, 2025 at 10 a.m. in Dept. 16, Plaintiff appear and show cause what the Court should not order terminating, evidentiary or monetary sanctions for the failure to provide fully responsive, code compliant discovery responses.** This Order to Show Cause may be set aside by stipulation of the Parties which is accepted and ordered by the Court, or discharged by proof of service of timely, verified, code-compliant responses to discovery and production of documents as ordered hereinabove. Absent stipulation of the Parties, Plaintiff is ordered to appear on May 30, 2025.

Moving Party to prepare Order; the Clerk of the Court is to give Notice of the Court's Order to Show Cause.

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